

Court No. - 46

Case :- CRIMINAL MISC. BAIL APPLICATION No. - 22586 of 2024

Applicant :- Abhishek Chand Kaushik

Opposite Party :- State of U.P.

Counsel for Applicant :- Manan Kumar Choubey

Counsel for Opposite Party :- G.A.

Hon'ble Samit Gopal,J.

1. List revised.
2. Heard Sri Manan Kumar Choubey, learned counsel for the applicant, Sri Birendra Pratap Singh, learned counsel for the State and perused the record.
3. Learned counsel for the State submits that he has not received instructions in the matter. He prays for two weeks' time for the same. Prayer is allowed.
4. List on 16.7.2024 as fresh.
5. In the meantime, learned A.G.A. may obtain instructions in the matter.

(Samit Gopal,J.)

Order Date :- 10.6.2024

Naresh

Court No. - 64

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Applicant :- Abhishek Chand Kaushik

Opposite Party :- State of U.P.

Counsel for Applicant :- Manan Kumar Choubey, Mrs. Pooja Chand Dwivedi

Counsel for Opposite Party :- G.A.

Hon'ble Rajeev Misra,J.

1. Heard Mrs. Pooja Chand Dwivedi, the learned counsel for applicant and the learned A.G.A. for State opposite party 1.

2. Perused the record.

3. This application for bail has been filed by applicant Abhishek Chand Kaushik seeking his enlargement on bail in Case Crime No. 05 of 2024, under Sections 7, 13 (1) (B), 13 (2) of the Prevention of Corruption Act, 1988, Police Station-Anti Corruption, Meerut, District-Meerut during the pendency of trial.

4. Record shows that in respect of an incident, which is alleged to have occurred on 20.4.2024, a delayed F.I.R. dated 1.5.2024 was lodged by first informant Inspector Durgesh Kumar (Trap Team In-charge) and was registered as Case Crime No. 05 of 2024, under Sections 7, 13 (1) (B), 13 (2) of the Prevention of Corruption Act, 1988, Police Station-Anti Corruption, Meerut, District-Meerut. In the aforesaid F.I.R. two persons namely Abhishek Chand Kaushik (applicant herein) and Avinash Kumar Gautam applicant in connected bail application have been nominated as named accused.

5. The prosecution story as unfolded in the F.I.R. is to the effect that the complainant Neeraj Singh resident of NOIDA, District Gautam Buddh Nagar has an electricity connection at his residential premise. However, there was some irregularity in the electricity bills in respect of the electric connection installed at the residential premise of the complainant. The F.I.R., further, records that the present applicant, who is working as an Executive Assistant in Paschimanchal Vidyut Vitaran Nigam is alleged to have demanded a sum of Rs. 5000/- for getting the electricity bill

of the complainant corrected. In view of above, a trap was laid on 30.4.2024 and applicant is alleged to have been caught red handed with bribe money of Rs. 5000/- cash in the denomination of Rs. 500/- currency notes. The chemical test regarding the recovery so made from the possession of the applicant is also against the applicant.

6. Learned counsel for applicant contends that even applicant is a named and charge sheeted accused, yet he is liable to be enlarged on bail. The applicant is a poor Class III employee and is working as an Executive Assistant in Paschimanchal Vidyut Nigam. Referring to the document occurring at page 20 of the supplementary affidavit dated 16.7.2024, it is urged by the learned counsel for applicant that since the load of electricity connection installed at the residential premises of the complainant was enhanced from 5 Kilowatt to 13 Kilowatt, therefore, applicant is not entitled to deal with such matter, as the applicant could only deal matters, where the sanction load is upto 9 Kilowatt. On the above premise, it is urged by the learned counsel for applicant that there cannot be any legal basis for the demand alleged to have been made by the applicant. Since, there is no basis of demand, therefore, recovery of money from the possession of applicant is of no consequence under the provisions of the Prevention of Corruption Act. To buttress his submission she has referred to the Constitution Bench judgement of the Supreme Court in **Neeraj Datta Vs. State (NCT of Delhi) 2022 Online SC 1724**. On basis thereof, she contends that merely on the basis of recovery so made from the applicant, provisions of Prevention of Corruption Act cannot be automatically attracted in the case of present applicant and therefore, no offence as complained of can be said to have been committed by the applicant. cannot attract the

7. Even otherwise, applicant is a man of clean antecedents having no criminal history to his credit except the present one. Applicant is in jail since 30.04.2024. As such, he has undergone more than 2 months of incarceration. The police report in terms of Section 173(2) Cr.P.C. has already been submitted on 26.4.2024. As such, the entire evidence sought to be relied upon by the prosecution against applicant stands crystallized. However, up to this stage, no such incriminating circumstance has emerged on record necessitating the custodial arrest of applicant during pendency of trial. On the above conspectus, it is thus urged by the learned counsel for applicant that applicant is liable to be enlarged on bail. In case, the applicant is enlarged on bail, he shall not misuse the liberty of bail and shall co-operate with the trial.

8. Per contra, the learned A.G.A. has vehemently opposed the prayer for bail. He submits that since applicant is a named and charge sheeted accused, therefore, he does not deserve any indulgence by this Court, offence complained of is not only illegal but also immoral. In view of above, no indulgence be granted by this Court in favour of applicant. However, he could not dislodge the factual/legal submissions urged by the learned counsel for applicant with reference to the record at this stage.

9. Having heard the learned counsel for applicant, the learned A.G.A. for State, upon perusal of record, evidence, nature and gravity of offence, accusations made, complicity of accused and coupled with the fact that though applicant is a named and charge sheeted accused, the recovery of Rs.5,000/- has been made from the possession of the applicant, the chemical test in respect of the recovery so made from the possession of applicant is also against applicant, yet the Court finds that in spite of the fact that the on the basis of document occurring at page 20 of the supplementary affidavit dated 16.7.2024, and as urged by the learned counsel for applicant that since the load of electricity connection installed in the residential premises of the complainant was enhanced from 5 Kilowatt to 13 Kilowatt, therefore, applicant is not entitled to deal such matters, as the applicant could only deal such the matters, where the sanctioned load is upto 9 Kilowatt. therefore, no demand of alleged bribery could have been raised by the applicant to deal with aforesaid matter, the ratio laid down by the Constitution Bench in the case of **Neeraj Datta (supra)** is squarely attracted in favour of applicant, therefore, in view of above, prima facie no offence under Sections 7, 13 (1) (B) and 13 (2) of the Prevention of Corruption Act can be said to have been committed by the applicant, the clean antecedents of applicant, the period of incarceration undergone, the police report in terms of Section 173(2) Cr.P.C. has already been submitted, therefore, the entire evidence sought to be relied upon by the prosecution against applicant stands crystallized, yet in spite of above, the learned A.G.A. could not point out any such circumstance from the record necessitating the custodial arrest of applicant during the pendency of trial, the judgment of Supreme Court in **Sumit Subhashchandra Gangwal Vs. State of Maharashtra, 2023 LiveLaw (SC) 373** (Paragraph 5), as per the provisions contained in Chapter 6 of the U.P. Electricity Supply Code, that is a detailed mechanism provided for correction of Bills, however, the learned A.G.A. could not point out from the above that applicant is authorized to correct the bill, therefore, irrespective of the objections raised by the learned A.G.A. in opposition to the present

application for bail, but without making any comments on the merits of the case, applicant has made out a case for bail.

10. Accordingly, the bail application is **allowed**.

11. Let the applicant **Abhishek Chand Kaushik** be released on bail in the aforesaid case crime number on his furnishing a personal bond and two sureties each in the like amount to the satisfaction of the court concerned with the following conditions which are being imposed in the interest of justice:-

(i) THE APPLICANT SHALL FILE AN UNDERTAKING TO THE EFFECT THAT HE/SHE SHALL NOT SEEK ANY ADJOURNMENT ON THE DATE FIXED FOR EVIDENCE WHEN THE WITNESSES ARE PRESENT IN COURT. IN CASE OF DEFAULT OF THIS CONDITION, IT SHALL BE OPEN FOR THE TRIAL COURT TO TREAT IT AS ABUSE OF LIBERTY OF BAIL AND PASS ORDERS IN ACCORDANCE WITH LAW.

(ii) THE APPLICANT SHALL REMAIN PRESENT BEFORE THE TRIAL COURT ON EACH DATE FIXED, EITHER PERSONALLY OR THROUGH HIS/HER COUNSEL. IN CASE OF HIS/HER ABSENCE, WITHOUT SUFFICIENT CAUSE, THE TRIAL COURT MAY PROCEED AGAINST HIM/HER UNDER SECTION 229-A IPC.

(iii) IN CASE, THE APPLICANT MISUSES THE LIBERTY OF BAIL DURING TRIAL AND IN ORDER TO SECURE HIS/HER PRESENCE PROCLAMATION UNDER SECTION 82 CR.P.C., MAY BE ISSUED AND IF APPLICANT FAILS TO APPEAR BEFORE THE COURT ON THE DATE FIXED IN SUCH PROCLAMATION, THEN, THE TRIAL COURT SHALL INITIATE PROCEEDINGS AGAINST HIM/HER, IN ACCORDANCE WITH LAW, UNDER SECTION 174-A IPC.

(iv) THE APPLICANT SHALL REMAIN PRESENT, IN PERSON, BEFORE THE TRIAL COURT ON DATES FIXED FOR (1) OPENING OF THE CASE, (2) FRAMING OF CHARGE AND (3) RECORDING OF STATEMENT UNDER SECTION 313 CR.P.C. IF IN THE OPINION OF THE TRIAL COURT ABSENCE OF THE APPLICANT IS DELIBERATE OR WITHOUT SUFFICIENT CAUSE, THEN IT SHALL BE OPEN FOR THE TRIAL COURT TO TREAT SUCH DEFAULT AS ABUSE OF LIBERTY OF BAIL AND PROCEED AGAINST THE HIM/HER IN ACCORDANCE WITH LAW.

(v) THE TRIAL COURT MAY MAKE ALL POSSIBLE EFFORTS/ENDEAVOUR AND TRY TO CONCLUDE THE TRIAL WITHIN A PERIOD OF ONE YEAR AFTER THE RELEASE OF THE APPLICANT.

12. However, it is made clear that any wilful violation of above conditions by the applicant, shall have serious repercussion on his bail so granted by this Court and the trial court is at liberty to cancel the bail, after recording the reasons for doing so, in the

given case of any of the condition mentioned above.

Order Date :- 16.7.2024

HSM